

25STCV34830 25STCV34830

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Case Number: 25STCV34830 Hearing Date: September 23, 2026 Dept: 731

Moving Party: Defendant, Karen Anita Freeman

Opposing Party: Defendant, Los Angeles County Metropolitan Transportation Authority

Notice: OK

Background Facts

This action arises from an alleged personal injury stemming from a transit-related incident.

Plaintiff's Complaint

Plaintiff Jose Miguel Batz

("Plaintiff") brings claims for (1) Negligence and (2) Negligence / Negligence

Per Se against the Los Angeles County Metropolitan Transportation Authority (the

"MTA"), its bus operator Jose Fernando Bonilla-Guevara ("Bonilla-Guevara"), non-MTA driver Karen Anita Freeman ("Freeman"), and Does 1 through 20.

Plaintiff's claims arise from

allegations that Plaintiff was a passenger on an MTA bus driven by Bonilla-Guevara on October 31, 2024, when Bonilla-Guevara stopped the bus in an active traffic lane and opened its doors, causing Plaintiff to exit directly into oncoming traffic, with Plaintiff being struck by a vehicle driven by Freeman, who failed to maintain a safe speed and proper lookout, resulting in serious injuries and damages to Plaintiff, including medical expenses, lost income, and pain and suffering.

The MTA, Bonilla-Guevara, and Does

1 through 20 are Defendants in the first cause of action, with the MTA vicariously liable for its employee's acts under Government Code section 815.2, subdivision (a), and Freeman is Defendant in the second cause of action.

The MTA's

Cross-Complaint

In turn, the MTA as

Cross-Complainant asserts claims for Implied Indemnity, Comparative Fault, and Declaratory Relief against Cross-Defendants Freeman and Roes 1-10.

The MTA contends that if it is

found liable to Plaintiff, such liability is secondary and arises solely from the acts or omissions of the Cross-Defendants, where Plaintiff's injuries and damages are attributable wholly or partly to the conduct of Cross-Defendants, thus supporting indemnification or apportionment of fault accordingly, as well as a declaration of rights and responsibilities in relation to Plaintiff's allegations.

Motion Before the

Court

Now before the Court is Defendant

Freeman's September 3, 2026, motion for a determination of good faith settlement with Plaintiff in the amount of \$15,000.00 in exchange for, inter alia, a release of claims and dismissal with prejudice from Plaintiff's Complaint, mandatory availability for a deposition, and provision of "a Declaration of No Additional Insurance and not in course and scope of employment, both of which she complied." The motion, as noticed, was set for hearing on December 1, 2026, a date that remains on calendar.

The record appears to reflect that

the motion first came to the Court's attention by way of a Case Management Conference ("CMC") Statement (CM-110) filed by Defendant Freeman on July 22, 2026, which noted that Freeman had settled her claims with Plaintiff for policy limits and an agreement to be deposed. Plaintiff's and the MTA's respective July 27, 2026, CMC Statements fail to mention the good faith settlement.

The record reflects that at the August 10, 2026, Case Management Conference, the Court ordered a Hearing on Motion for Determination of Good Faith Settlement (CCP 877.6) for September 3, 2026, creating the first date on the calendar set for a motion for determination of good faith settlement between Plaintiff and Freeman.

The Register of Actions shows that that same day, (1) the moving party (seemingly Defendant Freeman) took the September 3, 2026, hearing off calendar, and (2) the Court, of its own motion, continued the September 3, 2026, hearing to September 23, 2026.

Several weeks later, on September 3, 2026, Freeman filed her motion for determination of good faith settlement, which was served on counsel for Plaintiff and on counsel for the MTA via email and via certified mail with return receipt. The motion was calendared for hearing on December 1, 2026, creating a second hearing date on calendar for a motion for determination of good faith settlement between Plaintiff and Freeman.

On September 10, 2026, the MTA filed an opposition to the September 3, 2026, motion, disputing the procedural propriety of the motion (not noticed at least sixteen court days from the first hearing date, plus additional court days for method of service) and the substantive merit of the motion (inter alia, the amount in settlement is not proportional to the liability Freeman should face given that Freeman was largely responsible for Plaintiff's injuries and damages, where Freeman was unlawfully driving on the shoulder of the road before entering a right turn bay where Freeman struck Plaintiff as the latter was exiting the MTA bus driven by Bonilla-Guevara).

On September 18, 2026, Freeman filed a reply brief responding to the procedural argument (the motion was noticed for the second hearing date of December 1, 2026) and the substantive arguments (arguing essentially that the settlement amount is fair under the circumstances).

Defendant Freeman's motion is now before the Court per the August 10, 2026, Order.

Motion for

Determination of Good Faith Settlement

Preliminary Note

Regarding Hearing Dates, Order on the Merits, Reply Timeliness

The Court initially notes that, due to the Court's Order and other actions on August 10, 2026, there has been procedural confusion in relation to Freeman's motion, which Freeman properly noticed for December 1, 2026. The Court therefore declines to deny Defendant Freeman's motion, as based on the argument that Freeman's motion is being heard under a shortened notice period. Of particular note, a notice period can be waived by arguments on the merits coupled with a lack of prejudice, and here, the MTA has responded on the merits via its opposition, and there is to the Court insufficient prejudice in the record for the Court to deny Freeman's motion or continue the hearing related thereto. (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 343 [waive where a party appears at the hearing, opposes the motion on the merits, and was not prejudiced in preparing an opposition by the untimely notice, as the purpose of notice was thereby served].)

The Court further notes that it proceeds with a discussion on the merits of Defendant Freeman's motion given that the matter has been fully briefed by the parties and the notice and time periods have been waived.

Last, the Court notes that while Defendant Freeman's reply was filed two court days late, i.e., on September 18, 2026, rather than on September 16, 2026, as required by Code of Civil Procedure section 1005, subdivision (b), the Court will consider the reply because the reply only cursorily raises arguments responsive to the opposition without the need to cite evidence, where the MTA can dispute the arguments in reply at the hearing during oral argument.

b. Legal Standard

Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt is entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other

claimant and one or more alleged tortfeasors or co-obligors. (Code Civ. Proc., § 877.6, subd. (a)(1).)

In

the alternative, a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. (Code Civ. Proc., § 877.6, subd. (a)(2).) The application shall indicate the settling parties, and the basis, terms, and amount of the settlement. (Code Civ. Proc., § 877.6, subd. (a)(2).) The notice, application, and proposed order shall be given by certified mail, return receipt requested, or by personal service, with proof of service to be filed with the court. (Code Civ. Proc., § 877.6, subd. (a)(2).) Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a nonsettling party may file a notice of motion to contest the good faith of the settlement. (Code Civ. Proc., § 877.6, subd. (a)(2).) If none of the nonsettling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement. (Code Civ. Proc., § 877.6, subd. (a)(2).) However, this subsection does not apply to settlements in which a confidentiality agreement has been entered into regarding the case or the terms of the settlement. (Code Civ. Proc., § 877.6, subd. (a)(2).)

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issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing. (Code Civ. Proc., § 877.6, subd. (b).)

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party asserting lack of good faith in settlement has the burden of proving lack of good faith. (Code Civ. Proc., § 877.6, subd. (d).) The objecting party may carry its burden by demonstrating that the settlement is so far “out of the ballpark” in relation to various factors, including:

(1)

A rough approximation of plaintiff's total recovery and the settlor's proportionate liability;

(2)

The amount paid in settlement;

(3)

The allocation of settlement proceeds among plaintiffs;

(4)

A recognition that a settlor should pay less in settlement than it would if it were found liable after a trial;

(5)

The financial conditions and insurance policy limits of settling defendants; and

(6)

The existence of collusion, fraud, or tortious conduct aimed to injure the interests of the non-settling defendants.

(Tech-Bilt,

Inc. v. Woodward-Clyde & Assocs. (1985) 38 Cal.3d 488, 499-500.)

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determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc., § 877.6, subd. (c); Britz, Inc. v. Dow Chemical Co. (1999) 73 Cal.App.4th 177, 180 (Britz) [finding a good faith settlement determination discharges indemnity claims by other tortfeasors, whether or not named as parties to the action, provided they were given notice and an opportunity to be heard].)

Discussion

i. Procedural
Requirements

1. Notice,

Application, And Proposed Order by Certified Mail

Defendant Freeman's motion

satisfies the procedural requirement mandating service of the notice,

application, and proposed order for determination of good faith settlement by certified mail, return receipt requested, as reflected in the proof of service attached to the moving papers' notice of motion. (Motion, Notice of Motion, Proof of Service at p. 20, Ins. 9-11; see Code Civ. Proc., § 877.6, subd. (a)(2).)

2. Timing of the MTA's Opposition

The MTA properly filed an opposition to Plaintiff's motion within 25 days of notice, with service of the motion on September 3, 2026, and service of the opposition a week later on September 10, 2026. (Opposition, Proof of Service; see Code Civ. Proc., § 877.6, subd. (a)(2).)

3. Settling Parties, Basis, Terms, and Amount of Settlement

Defendant Freeman's motion satisfies the procedural requirement to provide the identities of the settling parties and the basis, terms, and amount of settlement by identifying Plaintiff and Defendant Freeman as the settling parties, and the basis, terms, and amount of settlement identified as, inter alia, release of claims and dismissal with prejudice from Plaintiff's Complaint, mandatory availability for a deposition, provision of certain declarations, and other terms, in exchange for \$15,000.00 to be paid to Plaintiff by Defendant Freeman, comprising the upper limit of Freeman's insurance carrier coverage. (See Motion, Cabot Decl., ¶¶ 10-10.g.; see also Motion, Proposed Order, §§ 1-3.)

ii. Tech-Bilt Factors

Moving to the merits, after review, the Court finds that the Tech-Bilt factors are simply not satisfied here.

Two factors clearly disfavor finding a determination of good faith settlement: (1) an incongruent approximation of plaintiff's total recovery and the settlor's proportionate liability, with the recovery heavily skewed in favor of Defendant Freeman; and

(2) the amount to be paid in settlement (\$15,000.00) disfavors a good faith settlement determination based on the same lack of incongruity (a projected verdict of between \$350,000.00 and \$1.5 million).

Notably, the papers do not dispute that Freeman was, as alleged in the Complaint, the driver of the vehicle that struck Plaintiff. Moreover, Plaintiff's papers represent that accident as resulting in serious injuries, with "an indicat[ion] [that] Plaintiff sustained a traumatic brain injury" as a result of the accident. (Motion, Cabot Decl., ¶ 5.)

However, despite these injuries, Freeman's papers characterize (without a declaration from Plaintiff) an agreement between Freeman and Plaintiff as to the MTA being responsible for the accident based on Bonilla-Guevara dropping Plaintiff off in the middle lane of a heavily trafficked boulevard. (Motion, Cabot Decl., ¶¶ 5-7.)

The opposition disputes such lack of attributable responsibility to Freeman by contending that the reason that Freeman struck Plaintiff was that Freeman was unlawfully driving in a road shoulder (emergency lane) to enter a right turn bay, which is where Plaintiff exited the MTA bus driven by Bonilla-Guevara and was struck by Freeman in Freeman's vehicle. (See Opposition, pp. 2-3.) In support, the MTA cites to the police report created by the Los Angeles Police Department for the subject accident between Freeman and Plaintiff and a photo of an intersection purported to be the location where the accident took place, as well as references to a deposition of an officer at the scene (Officer Garcia), but critically without attaching a copy of the transcript or excerpts therefor (transcript pending per the opposition). (Opposition, Kohrs Decl., ¶¶ 4-6, Exs. A-B [transcript pending at ¶ 5].)

The Court does not agree with the opposition's characterization of its supporting evidence.

The characterization of the Officer Garcia deposition is hearsay without the transcript, and the Court can dispose of Freeman's motion without reference thereto, eliminating prejudice to the MTA.

As for the MTA's characterization

of the police report, the police report is helpful in the analysis before the Court but could have been better summarized by the MTA. The report, to the Court, states: Bonilla-Guevara, the MTA bus driver, as a witness at the scene, relayed to Officer Arauz, that Defendant Freeman struck Plaintiff, while driving a vehicle in “the #3 lane of Beverly Blvd.” where “Witness [Bonilla-Guevara] [had] opened the doors to the bus[] thinking the #3 lane was a bike lane” and where the report separately and generally notes that “Beverly Blvd is an east and west direction roadway with three lanes, and two turn lanes in each direction, separated by double yellow lines,” “all lane markings [...] present and in good working order,” emphasis added; and Freeman “caused th[e] traffic crash by being in violation of 22350 CVC,” a statutory provision cited in the police report as relating to speeding and ensuring safe driving under conditions involving persons and property. (See Opposition, Kohrs Decl., ¶ 4, Ex. A TRAFFIC CONTROLS & STATEMENTS & CAUSE.)

Under these circumstances, the police report attributed to the accident in the pleadings—against which Defendant Freeman filed no express objection along with her reply, and against which Plaintiff generally filed no objection or other paper—shows that both the MTA via Bonilla-Guevara’s conduct and Freeman via her own conduct contributed to the injuries sustained by Plaintiff, where Freeman appears to have been lawfully in “the #3 lane of Beverly Blvd.” but was unlawfully speeding, and where Bonilla-Guevara told a law enforcement officer at the scene that he mistakenly let Plaintiff of the bus into lane #3 because Bonilla-Guevara mistakenly believed that lane to be a bike lane.

This police report is likely to be disputed in this litigation as to its characterizations of the accident (see Reply, pp. 2-3 at § 3), but for purposes of the motion before the Court, the Court considers this evidence critical to its determination that a \$15,000.00 settlement, when juxtaposed against the moving papers’ projected verdict of \$350,000.00 to \$1.5 million, is not a rough approximation of Defendant Freeman’s possible liability and Plaintiff’s recovery. Indeed, based on these numbers, Defendant Freeman is deemed only, in the extremely low end, only 4.29% liable for all Plaintiff’s injuries and damages as based on a verdict of \$350,000.00, calculated as \$15,000.00 divided by \$350,000.00 ($\$15,000.00 \div \$350,000.00$).

The Court otherwise finds that two factors neither favor nor disfavor the finding of a good faith settlement.

First, the allocation of settlement proceeds among plaintiffs, there being only one plaintiff, neither favors nor disfavors the finding of a good faith settlement.

Second, the recognition that a settlor should pay less in settlement than it would if it were found liable after a trial is not helpful here, and if not neutral, in fact disfavors finding a good faith settlement. Defendants in this case heavily dispute whether, even considering the fact that settlements will result in recovery lower than at trial, Defendant Freeman's proportionate liability is too small as based on a \$15,000.00 settlement, and a projected \$350,000 low-end recovery at trial.

Last, two factors favor the finding of a good faith settlement.

The financial conditions and insurance policy limits of Defendant Freeman slightly favor the finding of a good faith settlement, where Defendant Freeman represents her coverage limit as \$15,000.00 with no additional insurance (Motion, Cabot Decl., ¶¶ 8, 10(a)), though the MTA rightfully notes that no evidence of coverage (declarations page, etc.) is before the Court (see, e.g., Opposition, 2:8-11), where the reply offers to provide these documents if needed (Reply, p. 2 at § 2).

Another factor supporting a determination of good faith is the lack of evidence of the existence of collusion, fraud, or tortious conduct aimed at injuring the interests of the non-settling defendants, i.e., the MTA and Defendant Bonilla-Guevara.

However, on balance, and strictly on the evidence before the Court, the proposed settlement heavily and disproportionately attributes minimal liability to Defendant Freeman, as based on a juxtaposition of the evidence (including the accident report) and the recovery against projected verdict (\$15,000.00 settlement with Defendant Freeman, and projected verdict of \$350,000.00 and \$1.5 million).

d. Conclusion

Defendant Karen Anita Freeman's motion for determination of good faith settlement is accordingly DENIED.

The December 1, 2026, hearing is
TAKEN OFF CALENDAR.

Defendant Karen Anita Freeman is ordered to give
notice.